

Unless a pet fee has been paid, Tenant may not keep or allow pets or animals on the Premises without Landlord's approval of the pet or animal in writing.

Landlord shall hold security deposit money in a separate non-interest-bearing account at the following banking institution for the benefit of Tenant at:

Chase Bank JPMorgan Chase Bank NA 270 Park Avenue, New York, NY 1001

Security Deposit cannot be used as rent.

1.6 LATE CHARGES AND FEES

A late charge in the amount of ten percent (10%) of the Tenant's total outstanding account balance if not paid by the 5th of each month, and a \$10.00 per diem charge thereafter until the next payment date.

A bad check fee in the amount \$25.00. If the Tenant makes any Lease Payment with a bad check, the Landlord can require the Tenant to pay all future Lease Payments in certified check or by money order.

A service fee of \$30.00 if served for Lease violation.

All payments shall be applied to oldest past due charge.

All late fees, service fees, legal, filing and collection fees and other charges will be deemed additional rent and to be paid by Tenant

1.7 NOTICES

All notices to Landlord and all Lease Payments must be sent to Landlord at
unless Landlord gives Tenant written notice of a change.

Notices to Tenant may be sent to the email address(es) provided on the Lease or any updated email address Tenant supplies in writing.

Notices sent by email will be deemed delivered when the sender receives an electronic confirmation of receipt or a reply from the recipient.

Either party may still elect to send notice by certified mail to ensure a documented record of delivery.

Email may be used for routine notices. However, any notice required by the Pennsylvania Landlord and Tenant Act (including a Notice to Quit) will be served as permitted by 68 P.S. § 250.501(f) (personal service, leaving at premises, or posting).

1.8 USE OF PREMISES

Tenant shall use the Premises only for residential purposes. Tenant also shall obey, and require anyone on the Premises to obey all laws and any restrictions that apply to the Premises. Landlord will give Tenant notice of any restrictions that apply to the Premises.

If the Premises are located in a condominium or cooperative development, the Lease and Tenant's rights under it, including as to the common areas, are subject to all terms of the governing documents for the project, including, without limitation, any Declaration of Condominium or proprietary lease, and any restrictions, rules, and regulations now existing or hereafter adopted, amended or repealed.

Landlord may adopt, modify, or repeal rules and regulations for the use of common areas and conduct on the Premises during the Lease Term. All rules and regulations must be reasonable and in the best interest of the development in which the Premises are located.

Occasional overnight guests are permitted. An occasional overnight guest is one who does not stay more than (3) three nights in any calendar month. Landlord's written approval is required to allow anyone else to occupy the Premises.

Unless a pet fee has been paid, Tenant may not keep or allow pets or animals on the Premises without Landlord's approval of the pet or animal in writing.

No smoking is permitted in the Premises. If there is any evidence of smoking in the premises, you will incur \$700.00 fine.

Tenant shall not keep any dangerous or flammable items that might increase the danger of fire or damage on the Premises without Landlord's consent.

Tenant shall not create any environmental hazards on or about the Premises.

Tenant shall not destroy, deface, damage, impair, or remove any part of the Premises belonging to Landlord, nor permit any person to do so.

Tenant may not make any alterations or improvements to the Premises without first obtaining Landlord's written consent to the alteration or improvement. However, unless this box ☐ is checked, Tenant may hang pictures and install window treatments in the Premises without Landlord's consent, provided Tenant removes all such items before the end of the Lease Term and repairs all damage resulting from the removal and installation.

Tenant must act, and require all other persons on the Premises to act, in a manner that does not unreasonably disturb any neighbors or constitute a breach of the peace.

1.9 MAINTENANCE

Landlord and Tenant agree that the maintenance of the Premises must be performed by the person indicated below:
Landlord's Required Maintenance. Landlord will comply with applicable building, housing, and health codes relating to the Premises. If there are no applicable building, housing, or health codes, Landlord shall maintain and repair the roofs, porches, windows, exterior walls, foundations, floors, structural components and steps, and keep the plumbing in reasonable working order.

Elective Maintenance. Fill in each blank space in this section with Landlord or Tenant to show who will take care of the item noted. If a space is left blank, Landlord will be required to take care of that item (or assure that the association takes care of the items if the Premises are located in a condominium). Windows must be covered with blinds, curtains or drapes immediately upon occupancy.

Tenant shall be responsible for all windows, doors, and screens from the date of occupancy.

	Landlord		Tenant	Smoke Detectors (Tenant required to test monthly)
	Landlord		Tenant	Extermination (Landlord is not responsible for bedbugs)
	Landlord		Tenant	Locks and Keys
	Landlord		Tenant	Clean and safe condition (outside areas)
	Landlord		Tenant	Appliances listed in agreement
	Landlord		Tenant	Fixtures

Landlord shall be responsible for major maintenance or major replacement of equipment, except for equipment for which Tenant has accepted responsibility for in the previous paragraph. Major maintenance or major replacement means a repair or replacement that costs more than \$50.00 per occurrence.

Tenant shall be required to vacate the Premises on 7 days' written notice, if necessary, for extermination pursuant to this subparagraph. When vacation of the Premises is required for extermination, Landlord shall not be liable for damages but shall abate the rent.

Nothing in this section makes Landlord responsible for any condition created or caused by the negligent or wrongful act or omission of Tenant, any member of Tenant's family, or any other person on the Premises with Tenant's consent.

Tenant's Required Maintenance. At all times during the Lease Term, Tenant shall: comply with all obligations imposed upon tenants by applicable provisions of building, housing, and health codes; keep the Premises clean and sanitary; remove all garbage from the dwelling unit in a clean and sanitary manner; keep all plumbing fixtures in the dwelling unit clean, sanitary, and in repair; and use and operate in a reasonable manner all electrical, plumbing, sanitary, heating, ventilating, air conditioning, and other facilities and appliances, including elevators.

Tenant agrees not to use any other heating source than the one provided in the leased property. The tenant will maintain a temperature of 60 degrees or above at all times.

Tenant agrees not to hold Landlord/Owner responsible for damage or injury caused by water, snow, or ice that comes into the property.

Tenant shall be responsible for plumbing drain clogs, broken windows, doors and screens from the date of occupancy.

1.10 EMERGENCY MAINTENANCE LIST

EMERGENCY situations responded to 24 hours/day, 7 days/week: NO HEAT, WATER GUSHING/OVERFLOWING Please call 570 560 6626 for all Emergency calls!

Maintenance situations of URGENT nature that will attempt to be responded to within 24 hours of next business day following date of request:

REFRIGERATION, STOVE, ELECTRICAL, NO HOT WATER, ROOF/CEILING LEAK, TOILET RUNNING, RUNNING/LEAKING WATER, SAFETY ISSUES

All other non-emergency or non-urgent maintenance requests will be addressed within 72 hours of the next business day following the date of the request.

NOTE: LOCKOUTS ARE NOT AN EMERGENCY!! You must call a locksmith!!

1.11 PRIMARY UTILITIES

The Tenant agrees to place the following utilities in their name before moving into the premises, to be responsible for payment, and to maintain service for the entire length of the lease.

- A. Electricity – PPL Electric
- B. Gas - UGI

Tenant shall send the Landlord a certified letter, seven (7) days in advance of any utility being turned off prior to the expiration of the Lease Term. If Tenant fails to give such notice, Tenant agrees to pay Landlord for any damages, including shut-off and turn-on fees, caused by the utility being turned off. This includes, but is not limited to, allowing heating fuel to run out.

1.12 OTHER UTILITIES AND SERVICES

Following are the responsibilities for Landlord and Tenant:

Heating		Landlord		Tenant	
Cooling		Landlord		Tenant	
Cooking		Landlord		Tenant	
Electric		Landlord		Tenant	
Cable/Internet		Landlord		Tenant	
Telephone		Landlord		Tenant	
Water		Landlord		Tenant	
Sewer		Landlord		Tenant	
Trash		Landlord		Tenant	Tenant is responsible for any and all boro fines for not having garbage cans brought in on time
Pest Control		Landlord		Tenant	
Bed Bugs		Landlord		Tenant	
HOA Fees		Landlord		Tenant	NA
Snow		Landlord		Tenant	
Lawn & shrub care		Landlord		Tenant	

1.13 SERVICE MEMBER

If Tenant is a member of the United States Armed Forces on active duty or state active duty or a member of the Pennsylvania National Guard or United States Reserve Forces, the Tenant has rights to terminate the Lease.

1.14 LANDLORD'S ACCESS TO PREMISES

Landlord or Landlord's Agent may enter the Premises in the following circumstances:

- At any time for the protection or preservation of the Premises.
- After reasonable notice to Tenant at reasonable times for the purpose of repairing the Premises.
- After reasonable notice to Tenant to inspect the Premises; make necessary or agreed upon repairs, decorations, alterations, or improvements; supply agreed services; or exhibit the Premises to prospective or actual purchasers, mortgagees, tenants, workers, or contractors under any of the following circumstances:
- With Tenant's consent;
- In case of emergency;
- When Tenant unreasonably withholds consent, or if Tenant is absent from the Premises for a period of at least one-half of a Rental Installment Period. (If the rent is current and Tenant notifies Landlord of an intended absence, then Landlord may enter only with Tenant's consent or for the protection or preservation of the Premises).

1.15 ASSIGNMENT AND SUBLEASING

Tenant may not assign the Lease or sublease all or any part of the Premises without first obtaining Landlord's written approval and consent to the assignment or sublease.

1.16 RISK OF LOSS

Subject to the next sentence, Landlord shall not be liable for any loss by reason of damage, theft, or otherwise to the contents, belongings, and personal effects of the Tenant, or Tenant's family, agents, employees, guests, or visitors. Landlord shall not be liable if such damage, theft, or loss is caused by Tenant, Tenant's family, agents, employees, guests, or visitors. Nothing contained in this provision shall relieve Landlord or Tenant from responsibility for loss, damage, or injury caused by its own negligence or willful conduct.

1. Minimum insurance requirements are: Personal Liability Coverage of no less than \$100,000. The Lessor's name and address shall be listed as an "Additional Insured" or "Interested Party": Colette Fritzlen
Personal Property Coverage is strongly recommended.

Each Lessee shall provide to Lessor a certificate from their insurance company or agent evidencing that renters insurance coverage, satisfying the minimum requirements above, has been obtained by Lessee, and the certificate shall require that the insurance company give Lessor at least 10 days' prior written notice of the cancellation or non-renewal of such coverage.

2. INSURANCE, RELEASE AND INDEMNIFICATION: LANDLORD'S INSURANCE DOES NOT INSURE

TENANT, TENANT'S GUESTS OR TENANT'S PROPERTY. Tenant is advised to maintain renter's liability insurance. Tenant agrees that Tenant shall release, indemnify, defend and hold Landlord harmless of and from any and all claims, demands, losses and the like, including costs and attorney's fees arising from or relating to claims of property loss, damage and personal injuries of the Tenant, or Tenant's guests and invitees unless caused by the negligence acts or omissions of Landlord.

3. If tenant does not provide proof of paid renter's insurance to landlord, a \$10 monthly surcharge will be due each month and shall be deemed additional rent. Upon providing proof of renter's insurance the \$10 monthly surcharge will be removed, however any past month's surcharge(s) will not be refunded even if coverage was in effect. Tenant understands that the \$10 surcharge is not a premium and does not provide insurance coverage for Tenant.

1.17 REQUIRED INSURANCE ADDENDUM TO LEASE AGREEMENT

This Addendum is attached to and becomes a part of the Residential Lease Agreement. For the duration of the Lease, Lessee is required to maintain and provide the following minimum required insurance coverage:

\$100,000 Limit of Liability for Lessee's legal liability for damage to Lessor's property for no less than the following causes of loss: fire, smoke, explosion, backup or overflow of sewer, drain or sump, and water damage ("Required Insurance").

Lessee is required to furnish Lessor with evidence of Required Insurance prior to occupancy of leased premises and at the time of each lease renewal period. If at any time Lessee does not have Required Insurance, Lessee is in breach of the Lease and Lessor shall have, in addition to any other rights under the Lease, the right but not the obligation to purchase Required Insurance coverage protecting the sole interest of the Lessor and seek contractual reimbursement from the Lessee for all costs and expenses associated with such purchase. This may be referred to as "force placed insurance".

Lessee may obtain Required Insurance or broader coverage from an insurance agent or insurance company of Lessee's choice. If Lessee furnishes evidence of such insurance and maintains the insurance for the duration of the Lease, then nothing more is required. If Lessee does not maintain Required Insurance, the insurance requirement of this Lease may be satisfied by Lessor, who may purchase such coverage through the Lessor's Legal Liability Insurance Policy ("LLIP"). The coverage provided under the LLIP will provide the Required Insurance coverage listed above. An amount equal to the total cost to the Lessor for the LLIP coverage shall be charged to Lessee by the Lessor as a recoverable expense under the Lease. Some important points of this coverage, which Lessee should understand are:

1. LLIP is designed to fulfill the insurance requirement of the Lease. Lessor is the Insured under the LLIP. This is single interest forced placed insurance. Lessee is not an Insured, Additional Insured or beneficiary under the LLIP. All loss payments are made to the Lessor.
2. LLIP coverage is NOT personal liability insurance or renters insurance. LLIP does not cover the Lessee's personal property (contents), additional living expenses or liability arising out of bodily injury or property damage to any third party. If Lessee requires any of these coverages, then Lessee should contact an insurance agent or insurance company of Lessee's choice to obtain personal liability insurance or renters insurance to protect Lessee's interests.
3. Coverage under the LLIP may be more expensive than the cost of Required Insurance obtainable by Lessee elsewhere. At any time, Lessee may contact an insurance agent or insurance company of their choice for insurance options to satisfy the Required Insurance under this Lease.

4. In the event that loss or damage to Lessor's property exceeds the amount of Required Insurance, Lessee shall remain contractually liable to Lessor for such amount. In the event of liability to any other party for bodily injury or property damage, Lessee shall remain liable to such other party.

8. It shall be the Lessee's duty to notify Lessor of any subsequent purchase of Renters Insurance.

As used in this Addendum: "Lease" may be interchangeable with "Lease Agreement"; "Lessee" may be interchangeable with "Resident" or "Tenant", and "Lessor" may be interchangeable with "Landlord" or "Owner".

Scheduling of the premises under the LLIP is not mandatory and Lessee may purchase Required Insurance from an insurance agent or insurance company of Lessee's choice at any time and coverage under the LLIP will be terminated by the Lessor.

1.18 SUBORDINATION

The Lease is automatically subordinate to the lien of any mortgage encumbering the fee title to the Premises from time to time.

1.19 LIENS

The interest of the Landlord shall not be subject to liens for improvements by the Tenant. Tenant shall notify all parties performing work on the Premises at Tenant's request that the Lease does not allow any liens to attach to Landlord's interest.

1.20 APPROVAL CONTINGENCY

This Lease is conditioned upon review and approval of Landlord, or Landlord's Agent. This Lease shall not be effective unless and until signed by the Landlord or Landlord's Agent.

1.21 INTEGRATION/MODIFICATION

This Lease contains the entire agreement between the parties and there are no other agreements verbal or otherwise which are not contained in this Lease. This Lease may be modified only by a written agreement signed by both Landlord and Tenant.

1.22 ATTORNEYS' FEES

In any lawsuit brought to enforce the Lease or under applicable law, the party in whose favor a judgment or decree has been rendered may recover its reasonable court costs, including attorneys' fees, from the non-prevailing party.

1.23 MISCELLANEOUS

1. Time is of the essence of the performance of each party's obligations under the Lease.
2. The Lease shall be binding upon and for the benefit of the heirs, personal representatives, successors, and permitted assigns of Landlord and Tenant, subject to the requirements specifically mentioned in the Lease. Whenever used, the singular number shall include the plural or singular and the use of any gender shall include all appropriate genders.
3. The agreements contained in the Lease set forth the complete understanding of the parties and may not be changed or terminated orally.
4. No agreement to accept surrender of the Premises from Tenant will be valid unless in writing and signed by Landlord.
5. All questions concerning the meaning, execution, construction, effect, validity, and enforcement of the Lease shall be determined pursuant to the laws of Pennsylvania.
6. The place for filing any suits or other proceedings with respect to the Lease shall be the county in which the Premises is located.
7. Landlord and Tenant will use good faith in performing their obligations under the Lease.
8. As required by law, Landlord makes the following disclosure: "RADON GAS." Radon is a naturally occurring radioactive gas that, when it has accumulated in a building in sufficient quantities, may present health risks to persons who are exposed to it over time. Levels of radon that exceed federal and state guidelines have been found in buildings in Pennsylvania. Additional information regarding radon and radon testing may be obtained from your county health department.

9. Tenant acknowledges that Landlord, in Landlord's discretion, may report Tenant's rental payment history during the Lease Term to credit reporting agencies.
10. When Tenant vacates, Tenant shall return all keys and provide Landlord with written notice of Tenant's forwarding address.
11. Tenant agrees that Tenant shall meet with a representative of Landlord to complete a move out condition report at the expiration of the Lease Term.
12. In the event more than one individual is listed as Tenant, all individuals/Tenants shall be jointly and severally liable for performance under this Lease.
13. Landlord has executed this Lease, in part, in reliance on the information contained in the Tenant's rental application. In the event information in the rental application is determined to be false, Landlord shall have the right to terminate this Lease.
14. If any provision in this Lease shall be invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired and such provision shall be ineffective only to the extent of such invalidity, illegality or unenforceability.

1.24 INSURANCE, RELEASE AND INDEMNIFICATION

LANDLORD'S INSURANCE DOES NOT INSURE TENANT, TENANT'S GUESTS OR TENANT'S PROPERTY.

Tenant is advised to maintain renter's liability insurance. Tenant agrees that Tenant shall release, indemnify, defend and hold Landlord harmless of and from any and all claims, demands, losses and the like, including costs and attorney's fees arising from or relating to claims of property loss, damage and personal injuries of the Tenant, or Tenant's guests and invitees unless caused by the negligence acts or omissions of Landlord.

If the tenant does not provide proof of paid renter's insurance to the landlord, a \$10 monthly surcharge will be due each month and shall be deemed additional rent. Upon providing proof of renter's insurance, the \$10 monthly surcharge will be removed; however, any past month's surcharge(s) will not be refunded even if coverage was in effect. The Tenant understands that the \$10 surcharge is not a premium and does not provide insurance coverage for the Tenant.

1.25 CONDITION/ACCEPTANCE OF PREMISES

Tenant has inspected the Premises and acknowledges that there are no defective conditions and all systems and appliances are in working order to the Tenant's satisfaction.

1.26 TENANT'S PERSONAL PROPERTY:

In compliance with 68 P.S. § 250.505a, any personal property remaining in the dwelling after Tenant vacates, is evicted, or otherwise surrenders possession shall be deemed abandoned **ten (10) days** after written notice is sent by certified mail to the Tenant's last known address, unless Tenant requests storage in writing.

If Tenant requests storage within ten (10) days of the notice, Landlord will store for up **to thirty (30) days** at Tenant's **reasonable** cost, consistent with 68 P.S. § 250.505a.

1.27 AUTOMATIC RENEWAL

This Lease shall automatically renew as follows unless written notice of intent to terminate this Lease is made by either Tenant or Landlord and delivered to the other sixty (60) days before the end of the Lease Term, or the end of any renewal term. If no selection is made in this Paragraph, then the renewal option shall be Month to Month with an annual rent increase of twenty percent (20%) per year: Twenty-four (24) months with an annual rent increase of five percent (5%) per year; Twelve (12) months with an annual rent increase of eight percent (8%) per year; the Lease will continue to renew as elected above at the end of each successive term unless written notice to terminate is provided in accordance with this Paragraph. For example, If the 12-month option is elected, the lease will continue to renew for periods of 12 months at the end of each term.

1.28 TRANSFER AND TERMINATION

Landlord may transfer this Lease to another Landlord

Landlord may terminate this Lease at any time and for any reason with thirty (30) days written notice to Tenant. Failure of Tenants to vacate the property on or before the termination date will result in Legal Proceedings against Tenants to recover possession of the property by the Landlord.

1.29 RESIDENT BREAKS LEASE

Resident breaks lease if:

- Resident does not pay rent or any other charges
- Resident leaves Property permanently before the end of this Lease
- Resident does not move out when supposed to
- Resident fails to do anything Resident agreed to in his Lease

If Resident Break Lease for Any Reason, Landlord may:

- Get back possession of the Property by going to court to evict Resident. Resident agrees that Landlord may receive reasonable lawyers fees and Landlord's reasonable cost as part of the court judgment in a lawsuit against Resident for violation for the agreements of the Lease. Resident agrees to pay court costs, administrative filing fee, and **\$300 appearance fee**.
- File a lawsuit against Resident for rents and charges not paid and for rents and charges for the rest of the Lease term. If Landlord wins (gets a money judgement against Resident), Landlord can use the court process to take Resident's personal goods, furniture, motor vehicles, money in the banks and attach wages.
- Keep Resident's Security Deposit and all funds paid on account
- RESIDENT UNDERSTANDS THAT RESIDENT IS WAIVING RESIDENT'S RIGHT TO NOTICE OF DEFAULT AND NOTICE TO QUIT. To the extent permitted by 68 P.S. § 250.501(e), Tenant **waives notice to quit**; Landlord may file a Landlord-Tenant Complaint without further notice.
- **If Resident chooses to break lease by leaving before the end of lease terms to avoid court proceeding tenant will be responsible for the following.**
 - Provide 30 days written notice
 - Tenant will be responsible for rent leading up to move out
 - Termination fee up to 2 month's worth of rent
 - Possible loss of security

By initialing below, you acknowledge and agree to the terms in Section 1.

2 - MOLD ADDENDUM TO LEASE

2.1 MOLD DEFINITION

Mold consists of naturally occurring microscopic organisms which reproduce by spores. Mold breaks down and feeds on organic matter in the environment. The mold spores spread through the air and the combination of excessive moisture and organic matter allows for mold growth. Not all, but certain types and amounts of mold can lead to adverse health effects and/or allergic reactions. Not all mold is readily visible, but when it is, can often be seen in the form of discoloration, ranging from white to orange and from green to brown and black, and often there is a musty odor present. Reducing moisture and proper housekeeping significantly reduces the chance of mold and mold growth.

2.2 CLIMATE CONTROL

Tenant(s) agree to use all air-conditioning in a reasonable manner and use heating systems in moderation and to keep the premises properly ventilated by periodically opening windows to allow circulation of fresh air during dry weather only. OWNER or AGENT recommends that air conditioning be used.

TENANT(S) agree to:

1. Keep the premises clean and regularly dust, vacuum and mop
2. Use hood vents when cooking, cleaning and dishwashing
3. Avoid excessive amounts of indoor plants
4. Use exhaust fans or open windows when bathing/showering and leave on/open for a sufficient amount of time to remove
5. moisture
6. Use ceiling fans if present
7. Water all indoor plants outdoors
8. Wipe down any moisture and/or spillage
9. Wipe down bathroom walls and fixtures after bathing/showering
10. Wipe down any vanities/sink tops
11. Avoid air drying dishes
12. Not dry clothes by hang drying indoors
13. Open blinds/curtains to allow light into premises
14. Wipe down floors if any water spillage
15. Hang Shower curtains within bath when showering
16. Securely close shower doors if present
17. Leave bathroom and shower doors open after use
18. Use dryer if present for wet towels
19. Use household cleaners on any hard surfaces
20. Remove any moldy or rotting food
21. Remove garbage regularly
22. Wipe down any and all visible moisture
23. Wipe down windows and sills if moisture present
24. Inspect for leaks under sinks
25. Check all washer hoses if applicable
26. Regularly empty dehumidifier if used.

REPORTING REQUIREMENTS - Tenant(s) agree to report in writing

1. Visible or suspected mold
2. All a/c or heating problems or abnormalities
3. Leaks, moisture accumulations, major spillage
4. Plant watering overflows
5. Musty odors, shower/bath/sink/toilet overflows
6. Leaky faucets, plumbing, pet urine accidents
7. Discoloration of wall, baseboards, doors, window frames, ceilings
8. Moldy clothing, refrigerator and a/c drip pan overflows
9. Moisture dripping from or around any vents, a/c condenser lines
10. Loose, missing or failing grout or caulk around tubs, showers, sinks, faucets, counter tops, clothes dryer vent leaks
11. Any and all moisture

2.3 SMALL AREAS OF MOLD: If mold has occurred on a small non-porous surface such as ceramic tile, Formica, vinyl flooring, metal, or plastic and the mold is not due to an ongoing leak or moisture problem, Tenant agrees to clean the areas with soap (or detergent) and a small amount of water, let the surface dry, and then within 24 hours apply a non-staining cleaner such as Lysol Disinfectant ®, Pine-Sol Disinfectant ®(original pine-scented), Tilex Mildew Remover®, or Clorox Cleanup®.

2.4 TERMINATION OF TENANCY: Owner or agent reserves the right to terminate a tenancy and TENANT(S) agree to vacate the premises in the event owner or agent in its sole judgment feels that either there is mold or mildew present in the dwelling unit which may pose a safety or health hazard to TENANT(S) or other persons and/or TENANT(S)' actions or inactions are causing a condition which is conducive to mold growth.

2.5 INSPECTIONS: TENANT(S) agrees that Owner or Agent may conduct inspections of the dwelling unit at any time with reasonable notice.

2.6 VIOLATION OF ADDENDUM: IF TENANT(S) FAIL TO COMPLY WITH THIS ADDENDUM, Tenant(s) can be held responsible for property damage to the dwelling and any health problems that may result. Noncompliance includes but is not limited to Tenant(s) failure to notify Owner or Agent of any mold, mildew, or moisture problems immediately IN WRITING. Violation shall be deemed a material violation under the terms of the Lease, and Owner or Agent shall be entitled to exercise all rights and remedies it possesses against TENANT(S) at law or in equity and TENANT(S) shall be liable to Owner for damages sustained to the Leases Premises. TENANT(S) shall hold Owner and Agent harmless for damage or injury to person or property as a result of TENANT(S) failure to comply with the terms of this Addendum.

2.7 HOLD HARMLESS: If the premises is or was managed by an agent of the Owner, TENANT(S) shall hold agent harmless and shall look solely to the property Owner in the event of litigation or claims concerning injury, damage or harm suffered due to mold. **PARTIES: THIS ADDENDUM IS BETWEEN THE TENANT(S) AND OWNER AND/OR AGENT MANAGING THE PREMISES. THIS ADDENDUM IS IN ADDITION TO AND MADE PART OF THE LEASE AGREEMENT AND IN THE EVENT, THERE IS ANY CONFLICT BETWEEN THE LEASE AND THE ADDENDUM, THE PROVISIONS OF THIS ADDENDUM SHALL GOVERNED**

By initialing below, you acknowledge and agree to the terms in Section 2.

3 - ADDITIONAL CLAUSES

3.1 NON-SEX OFFENDER

It is the policy of the Landlord not to knowingly rent to, or allow continued occupancy by, any person required to register as a sexual offender or sexual predator under federal, state, or local law.

Tenant Representation. Tenant represents that no Tenant, household member, or regular occupant is currently required to register as a sexual offender or sexual predator in any jurisdiction.

Breach & Remedies: If, during the tenancy, any Tenant or occupant becomes required to register as a sexual offender or sexual predator, it shall constitute a material breach of this Lease. Landlord may seek termination and possession through the court process and may recover permissible damages and fees.

Landlord will comply with all applicable screening and fair-housing laws when enforcing this policy.

3.2 DRUG/CRIME FREE

1. Tenant, any member of Tenant's household, or any guest or person under Tenant's control shall not engage in criminal activity, including drug-related criminal activity, on or near the Premises. "Drug-related criminal activity" means the illegal manufacture, sale, distribution, possession, or use of a controlled substance.
2. Tenant, household members, or guests shall not engage in or facilitate any act intended to promote or conceal criminal activity on or near the Premises.
3. Tenant shall not permit the Premises to be used for criminal activity or to harbor individuals engaged in criminal activity, regardless of whether such persons are household members or guests.
4. Tenant, household members, or guests shall not engage in any illegal activity, including but not limited to prostitution, public drunkenness, disorderly conduct, assault, battery, discharging weapons, or other acts that threaten the health, safety, or peaceful enjoyment of others.

Breach & Remedies: A violation of this Addendum is a material breach of the Lease. Landlord may seek termination and possession through the court process and may recover permissible damages and fees. Violations may be proven by a preponderance of the evidence in any such proceeding.

By initialing below, you acknowledge and agree to the terms in Section 3.2.

3.3 BED BUGS

It is the intention to provide and maintain rental units free of bed bugs. Resident hereby agrees to prevent and control possible infestation by adhering to the below list of responsibilities:

1. Check for hitch-hiking bed bugs. If you stay in a hotel or another home, inspect your clothing, luggage, shoes and personal belongings for signs of bed bugs before re-entering your apartment. Check backpacks, shoes and clothing after using public transportation or visiting theaters. After guests visit make sure to inspect beds, bedding and upholstered furniture for signs of bed bug infestation.
2. Resident is forbidden from bringing furniture left outside as trash or obtained in any other method aside from purchase from a furniture store or other retailer into their rental unit.
3. Resident shall report any problems immediately to Owner/Agent. Even a few bed bugs can rapidly multiply to create a major infestation that spreads to other units.
4. Resident shall cooperate with pest control efforts. If your unit or a neighbor's unit is infested, a pest management professional may be called in to eradicate the problem. Your unit must be properly prepared for treatment. Resident must comply with recommendations and requests from the pest management specialist prior to professional treatment including but not limited to:

- a. Placing all bedding, drapes, curtains and small rugs in bags for transport to laundry or dry cleaners.
 - b. Heavily infested mattresses are not salvageable and must be sealed in plastic and disposed of properly.
 - c. Empty dressers, night stands and closets. Remove all items from floors; bag all clothing, shoes, boxes, toys, etc. Bag and tightly seal washable and non-washable items separately. Used bags must be disposed of properly.
 - d. Wash all machine-washable bedding, drapes and clothing etc on the hottest water temperature and dry on the highest heat setting. Take other items to the dry cleaner making sure to inform the dry cleaner that the items are infested with bed bugs. Discard any items that cannot be decontaminated.
 - e. Move furniture toward the center of the room so that technicians can easily treat carpet edges where bed bugs congregate, as well as walls and furniture surfaces. Be sure to leave easy access to closets.
5. Resident agrees to reimburse the Owner/Agent for expenses, including but not limited to attorney fees and pest management fees, that Owner/Agent may incur as a result of the infestation of bed bugs in the apartment.
 6. Resident agrees to hold the Owner/Agent harmless from any actions, claims, losses, damages and expenses that may incur as a result of a bed bug infestation.
 7. It is acknowledged that the Owner/Agent shall not be liable for any loss of personal property to the resident as a result of an infestation of bed bugs. Resident agrees to have personal property insurance to cover such losses.

3.4 CRIMINAL ACTIVITY

There may or may not be persons living around your residence with criminal records or history. It is not the landlord's responsibility to inform you of any criminal activity or persons with criminal history living in the area. If you are concerned, additional information regarding criminal activity or neighbors with criminal history can be obtained from your local, county, state, or national police departments.

By initialing below, you acknowledge and agree to the terms in Section 3.4.

3.5 CLEAR AIR

No smoking of any kind—including cigarettes, cigars, pipes, vaping devices, or other tobacco or cannabis products—is permitted inside the Premises. Smoking is permitted only outdoors in a manner that does not allow smoke or odor to enter the building or disturb neighbors.

If there is any evidence of smoking inside the Premises, Tenant shall be charged a \$700.00 cleaning and deodorization fee representing estimated remediation costs. Additional cleaning or repair expenses required to restore the unit to a smoke-free condition (including painting, carpet replacement, and ozone treatment) shall also be the Tenant's responsibility.

Breach & Remedies: A violation of this no-smoking policy is a material breach of the Lease. Landlord may seek termination and possession through the court process and may recover permissible damages and fees. All costs incurred for smoke remediation shall constitute additional rent collectible under the Lease.

By initialing below, you acknowledge and agree to the terms in Section 3.5.

3.6 PAINTING

Prior to painting of walls or cabinets in the residence the tenant must first obtain permission in writing to paint and have the color approved by the Landlord or Landlord(s) agent. Landlord and Tenant(s) hereby acknowledge and agree that any of the walls and kitchen cabinets if painted by Tenant(s) will need to be returned to the original color or an approved neutral color prior to vacating the residence. For the Tenant to have a paint color approved, the paint color must be submitted to Property Manager who will then submit to the Owners of the property at least 30 days prior to painting the residence. This allows enough time for the Landlord to approve the color, as well as the Tenant to paint the walls and/or cabinets after approval.

3.7 APPLICATION OF FUNDS

Application of Funds: Monies paid by the Tenant shall be applied in the following order:

1. Tenant caused billing
2. Non-sufficient fund fees, late fees and /or service fees
3. Past due utilities
4. Attorney's fees
5. Tenant caused damage
6. Past due rent, oldest month to newest

If tenant, co-signer and/or guarantor and all responsible party defaults in any provision of this agreement resulting in monies owed to the landlord, usual and typical attorney and collection cost may be added to this balance.

By initialing below, you acknowledge and agree to the terms in Section 3.

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4 - RULES, REGULATIONS, AND PROPERLY CLEAN

4.1 RULES AND REGULATIONS

The Rules & Regulations listed below are part of the lease agreement between Landlord and Tenant. As set out in the Lease Agreement, violations or breach of any of the Rules & Regulations is a breach of the terms and conditions of the Lease Agreement, and the non-breaching (Landlord) shall be entitled to exercise any or all the remedies provided in the Lease Agreement.

If the property is not cleaned when you take possession, please call the Landlord immediately for instructions on what to do to have the property cleaned. Do not call if you signed an As-Is Agreement. Landlord will not reimburse you for cleaning it yourself and you would still be responsible for leaving the property clean when you vacate.

Light bulbs will be furnished by Owner at start of Lease. Tenant will be responsible to replace bulbs and bulbs must be working at Lease termination.

Tenant is responsible for all Bed Bug, Pests, Rodent and Insect Treatments.

No alternate heating sources such as kerosene heater or space heaters shall be permitted to be operated within the Lease Property without the prior consent in writing from Landlord.

Tenant shall not place or permit to be placed or stored items on any windowsills, ledges, balconies or porches and shall not hang laundry or other items from the balconies, windows and common areas.

Tenant will not place anything in the windows except drapes, blinds or window shades. Windows shall not be used as clothing lines.

Balconies and porches are not to be used for storage. The only items permitted on these areas are exterior lawn furniture. All bicycles shall be kept in designated areas.

Playing radios, stereos, televisions or other musical instruments in a manner which is disturbing to other Tenants or neighbors is prohibited.

No waterbed shall be permitted without prior consent in writing from Landlord.

Only standard picture hangers may be used for hanging pictures or mirrors; no adhesive hangers may be used. Tenants shall not install shelving, wallpaper, paint or alter in any way the features of the Leased Property without prior consent in writing from Landlord.

Tampering with fire alarm apparatus is in violation of the criminal statutes.

Tenants shall not go upon the roof of the Property and shall not enter any area clearly designated as being closed to tenants and others. No radio or television reception devices such as antennas and satellite dishes shall be installed upon the Property or in the common areas around the Property without prior consent in writing from Landlord.

If controlled by Tenant, the heat shall be maintained at a temperature no less than 60 degrees during the winter period from October to May. Dishwashers not supplied by Landlord will not be permitted unless written consent from Landlord has been obtained. Washing machines and dryers are permitted only when standard hookups have been installed in the Property by Landlord.

The washing to cars on the premises or the use of water from the premises for washing motor vehicles, trailers, campers, motor homes, or commercial vehicles is prohibited.

All motor vehicles on the premises must be currently licensed, inspected and operational. At properties where the parking lots are posted parking permits are required. All vehicles without valid permits or current license and inspection or not operational will be ticketed/towed from premises at owner's expense.

No mechanical work on motor vehicles of any type is permitted on the premises.

No motor vehicles may be parked on the grass or sidewalks at any time. No motor bikes or motorcycles may be kept on balconies, patios or inside of any property at any time. No trailers, campers, motor homes or commercial vehicles are permitted on the premises.

This Lease Agreement confers no rights on Tenant for use of the exterior or interior common areas other than access to the Lease Property.

Additional Charges Lock Change: \$150.00

Whenever damage is caused by carelessness, misuse or neglect on the part of the Tenant, Tenant's family or guest, the Tenant agrees to pay the cost of all repairs and do so within 30 days after receipt of the Landlord's demand for the repairs charges.

Repair Charges Charged at labor, materials and 15% administrative fee

No pets (animals or reptiles) of any kind may be carried or kept in or about the leased premises without the Landlord's written permission. There will be a charge per day per unauthorized animal for each day or partial day the animal remains on the property.

Charge per Day \$25

All personal items, food and trash must be removed from the property. Tenant fully understands that all personal belongings and furnishings must be removed from the property at the termination of this Lease. If Tenant fails to remove all such items, there will be a charge per hour to remove the items and a storage charge per day. Tenant agrees that Landlord will not be held responsible for damages or loss to these items either during removal or the storage period.

Charge per Hour \$50 Storage Charge per Day \$20

If storage space is made available for Tenant, Tenant is obligated to have all items properly locked inside the storage bin and storage bin shall be marked clearly with Tenant's name and property number.

All garbage and trash must be placed where directed by the Landlord and brought in a timely manner per the east Stroudsburg Boro — see website for more details.

No parties, meetings or gatherings may be held in any common area of the property including laundry rooms, public halls, lawn areas, or parking lots.

Additional locks, including security chain locks, deadbolt locks, security systems, etc. shall not be installed without prior consent in writing from Landlord.

No hot tubs or swimming pools are permitted on premises.

The Tenant agrees not to engage in any activity that threatens the health, safety or right to peaceful enjoyment of the property by others or any criminal activity on or near such premises.

If applicable, Tenant is responsible for all fines associated with code issues (i.e.: high grass, trash outside, etc.).

If applicable, Tenant has oil heat and requires a Prime Start due to lack of oil, Tenant will be responsible for the cost. Also, Tenant will fill oil tank to the level at the time of move in date or will be charged to refill to the proper level.

Any changes to Tenants contact information must be updated within 24 hours to property management. Tenant is responsible for all plumbing clogs.

Failure to leave residence in clean condition and ready for the next resident, will result in a minimum charge of \$150.00 for general cleaning, which shall be deducted from the security deposit.

Tenant agrees not to disconnect a smoke detector or allow anyone else to disconnect it. Tenant is responsible for any injuries, damages, or loss suffered because of someone disconnecting a smoke detector for any reason

MOVE IN PROCEDURE

The property shall be occupied by the person or persons listed in the lease, and no other person or persons shall be permitted to occupy the property without written consent of the landlord, provided that the limitation shall apply to after born children of the Tenant.

Moving of furniture to and from the property shall be performed in a manner and time of day that will not interfere with the peaceful of quiet enjoy of others. Any packing cases, barrels, or boxes which are used in moving must be removed by the Tenant or by the moving company.

NOTE: ALL maintenance and repairs are to be reported to the Landlord.

In properties where Tenants pay electric, oil or gas heat. Tenant is responsible for contacting the utility companies. Tenants are responsible for all cost involved in the installation, care and usage of their telephone(s), including charges for hook-ups, inside line maintenance and repair, local and long distances charges and repair and maintenance of the telephone(s). All utilities must be put in tenant's name prior to obtaining keys.

MOVE OUT PROCEDURE

The property must be completely cleaned.

If the property is carpeted, carpet must be professionally cleaned by a professional cleaning company, and the receipt must be turned in to the Landlord at the time of check out.

Complete a Surrender of Possession form and return with all keys to the Landlord at time of check out. Do not leave keys at the property. You will be charged for a lock change if you do not return all keys on the termination date of your lease.

The security deposit will be returned in one check with all Tenants' names unless we have been notified in writing of a change of procedure. The notification must be signed by all Tenants.

The landlord will prepare a list of charges for damages and unpaid rent. The landlord may deduct these charges from the security deposit. The landlord must return the security deposit (minus any charges to the Tenant) within 30 days.

4.2 PROPERLY CLEANED

1. Bathroom:
 - a. Clean tubs, toilets, lavatories, vanities, mirrors & light fixtures
2. Kitchen
 - a. Cabinets: Clean/wipe all cabinets inside and out, as well as the tops of the cabinets where dirt usually accumulates for the length of the lease period.
 - b. Stove: Clean the oven, and underneath all burners, replace all burners' reflector pans. Pull stove away from the wall and clean the floor underneath and wipe all grease & drippings on the front, top and sides of the stove.
 - c. Refrigerator: Clean and wipe exterior and interior. Pull away from wall. Vacuum the front & rear vents at the bottom of the refrigerator and the floor underneath the unit.
3. House in General:
 - a. Clean all ceiling fans and light fixtures. Replace all burnt out and missing light bulbs.
 - b. Wipe all window sills, baseboards and closet shelves.
 - c. Wipe dirt from all interior and exterior doors.
 - d. Remove all trash.
 - e. Wipe down all cob webs.
 - f. Wipe dirt from all walls and air conditioning vents. Install new/clean a/c filter.
 - g. Sweep front and back porch.
 - h. Sweep and mop all floors in the house.
 - i. Have the carpets professionally cleaned and provide receipt.

4. Return all keys:
 - a. Remember all keys to the house, pool, shed, boat dock, and tennis courts.
 - b. Remote controls to the garage doors will be left at the property in a kitchen drawer.

4.3 ACKNOWLEDGE RECEIPT OF THE FOLLOWING

Lead Base Paint book "How to protect your Family from lead in the Home".

https://www.epa.gov/sites/default/files/2014-02/documents/lead_in_your_home_brochure_land_b_w_508_easy_print_0.pdf

By initialing below, you acknowledge and agree to the terms in Section 4.

5 - ASBESTOS DISCLOSURE

5.1 ASBESTOS IS A COMMON BUILDING MATERIAL THAT MAY BE PRESENT IN MANY BUILDINGS CONSTRUCTED PRIOR TO 1981

The United States Environmental Protection Agency (EPA) has determined the mere presence of asbestos materials does not pose a health risk to residents and that such materials are safe as long as they are disturbed or dislodged in a manner that causes the asbestos fibers to be released. Sanding, scraping, pounding and other remodeling techniques that release dust may cause asbestos particles to become airborne.

EPA rules do not require the material to be removed. Federal law requires that reasonable precautions be taken to minimize the chance of damage or disturbance of asbestos-containing materials.

Tenant(s) acknowledge this is a WARNING that the Leased Premises may contain asbestos and may expose him/her to a chemical known to cause cancer. Tenant(s) agree that no improvements, alterations, modifications, or repairs to the premises shall be made without the express approval of the Landlord. This approval will depend upon acceptance of a written plan of protection from the release of or exposure to asbestos. Tenant(s) may hang only pictures and other wall ornaments with hangers that are less than ¼" diameter. Tenant(s) will notify the Landlord immediately where there exists a hole larger than ¼" diameter, evidence of a water leak, and/or any appearance of crumbling or peeling in the wallboard or ceilings.

For more information on asbestos, we recommend the Environmental Protection Agencies web site at:
<https://www.epa.gov/asbestos>.

By initialing below, you acknowledge and agree to the terms in Section 5.

6 - DISCLOSURE OF INFORMATION ON LEAD-BASED PAINT AND LEAD-BASED PAINT HAZARDS

6.1 LEAD WARNING STATEMENT

Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips, and dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, lessors must disclose the presence of lead-based paint and/or lead-based paint hazards in the dwelling. Lessees must also receive a federally approved pamphlet on lead poisoning prevention. "For purposes of this addendum, lead-based paint will be referred to as "LBP" and lead-based paint hazards will be referred to as "LBPH"

LBP/LBPH in Housing: Landlord has no knowledge of LBP/LBPH in the housing and no available LBP/LBPH records or reports, except as indicated: (describe all known LBP/LBPH information and list all available documents pertaining to LBP/ LBPH and provide documents to Tenant before obligating the Tenant's to the lease).

THERE IS NO KNOWLEDGE, RECORDS OR REPORT OF LEAD-BASE PAINT OR LEAD-BASE PAINT HAZARDS.

Certification of Accuracy: Tenant has received the pamphlet "entitled "Protect Your Family From Lead in Your Home" and all of the information specified above. Licensee has notified Landlord of Landlord's obligations to provide and disclose information regarding lead-based paint and lead-based paint hazards in the property as required by federal law (42 U.S.C.4852d) and is aware of his or her obligation to ensure compliance with federal lead-based paint law. Tenant, Landlord and each licensee has reviewed the information above and certifies, to the best of his or her knowledge, that the information he or she has provided is true and accurate.

By initialing below, you acknowledge and agree to the terms in Section 6.
